

the agreement to arbitrate.

The Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

The court, however, does not see the need to issue a further protective order with respect to any discovery in the matter. That the matter is stayed is sufficient to guard against any further discovery demands made by Plaintiff while arbitration is pending.

Disposition

Motion to Compel Arbitration and Stay Proceedings is **granted**.

Motion to Issue Protective Order is **denied**.

Defendant to file order for both motions.

12. 9:00 AM CASE NUMBER: L25-09216
CASE NAME: ADOLFO GONZALEZ VS. LANGLEY FEDERAL CREDIT UNION
***HEARING ON MOTION IN RE: FOR PROTECTIVE ORDER**
FILED BY: LANGLEY FEDERAL CREDIT UNION
TENTATIVE RULING:

Background

Defendant filed a Motion to Compel Arbitration and Stay proceedings (“Motion to Compel”), as well as a Motion to Issue a Protective Order over discovery (“Motion for Protective Order”), on 11/12/25.

Plaintiff timely responded to both motions.

Defendant subsequently filed timely Replies.

Defendant claims that Plaintiff’s causes of action arises from the account agreement between the two parties, and that this agreement required arbitration upon the election of either party. As a consequence, Defendant contends this action in civil court should be stayed pending completion of arbitration.

Defendant also desires that a Protective Order issue during the Stay, precluding any discovery related to the civil causes of action.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before

Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

In the instant matter, the court finds that a written agreement to arbitrate exists. The Court further finds that there is a controversy between the parties that is subject to that agreement as pled in the operative Complaint by Plaintiff. Plaintiff claims that Defendant failed to abide by the terms of the agreement – a loan for a car purchase - when they filed a lien against the vehicle after Plaintiff stopped making payments on the loan.

The Court finds that Defendant properly notified Plaintiff of their election to arbitrate, under the terms of the agreement, by virtue of indicating so in their Answer, as well as through a letter to Plaintiff reflecting as much (included as an Exhibit in Defendant's Motion to Compel).

The Court further finds that Plaintiff has failed or refused to arbitrate in accordance with the agreement to arbitrate.

The Court concludes that this matter ought to be stayed pending the outcome of the arbitration. See Code Civ. Proc. § 1281.4.

The Court, however, does not see the need to issue a further protective order with respect to any discovery in the matter. That the matter is stayed is sufficient to guard against any further discovery demands made by Plaintiff while arbitration is pending.

Disposition

Motion to Compel Arbitration and Stay Proceedings is **granted**.

Motion to Issue Protective Order is **denied**.

Defendant to file order for both motions.

13. 9:00 AM CASE NUMBER: L25-10452

CASE NAME: TD BANK USA, N.A. VS. MAELVIN HILARIO

*HEARING ON MOTION IN RE: AND NOTICE TO COMPEL ARBITRATION AND STAY PROCEEDING
FILED BY:

TENTATIVE RULING:

Background

Defendant filed a Motion to compel arbitration and stay proceeding, on 12/15/26.

Plaintiff filed a Response in opposition on 1/13/26. Defendant then filed a Reply, on